

Opinion of the Court

[is] the nature of the function performed, not the identity of the actor who perform[s] it, that inform[s] our immunity analysis.” *Forrester v. White*, 484 U.S. 219, 229 (1988). The separation of powers does not bar a prosecution predicated on the President’s unofficial acts.²

III

Determining whether a former President is entitled to immunity from a particular prosecution requires applying the principles we have laid out to his conduct at issue. The first step is to distinguish his official from unofficial actions. In this case, however, no court has thus far considered how to draw that distinction, in general or with respect to the conduct alleged in particular.

Despite the unprecedented nature of this case, and the very significant constitutional questions that it raises, the lower courts rendered their decisions on a highly expedited basis. Because those courts categorically rejected *any* form of Presidential immunity, they did not analyze the conduct alleged in the indictment to decide which of it should be categorized as official and which unofficial. Neither party has briefed that issue before us (though they discussed it at oral argument in response to questions). And like the underlying immunity question, that categorization raises multiple unprecedented and momentous questions about the powers of the President and the limits of his authority under the Constitution. As we have noted, there is little pertinent precedent on those subjects to guide our review of this case—a case that we too are deciding on an expedited basis,

² Our decision in *Clinton* permitted claims alleging unofficial acts to proceed against the sitting President. See 520 U.S., at 684. In the criminal context, however, the Justice Department “has long recognized” that “the separation of powers precludes the criminal prosecution of a sitting President.” Brief for United States 9 (citing *A Sitting President’s Amenability to Indictment and Criminal Prosecution*, 24 Op. OLC 222 (2000); emphasis deleted); see Tr. of Oral Arg. 78.